



File No.: EXP202402716

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 7, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following has been established:

FACTS

FIRST: On February 7, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against CREDIRECT PRÉSTAMOS, S.L. (hereinafter, the respondent) for not having duly attended to their rights of access and limitation of the processing of their data. In this document, the following facts are stated:

- That on December 4, 2023, they became aware of the inclusion in the ASNEF solvency file of an alleged debt with the respondent.
- That they contacted the respondent requesting information about the alleged debt being claimed and information about the communication of the registration of their data in the files, having received no response.
- That at no time was the registration of the alleged debt in the aforementioned files communicated to them and that such inclusion negatively affects them.
- That the data collected in the solvency files does not match their economic reality, causing a serious violation of their image and honor.

For all these reasons, the complainant requests this authority to agree to "the precautionary blocking of the data and the immediate obligation to attend to the requested right."

Attached to their complaint are:

- Certificate of operations in the ASNEF file where personal data of the complainant appears along with amounts of unpaid balances.
- Document addressed to the respondent requesting that the necessary documentation related to the alleged debt be sent to them, as well as the precautionary removal of their data while compliance with the regulations is supervised.
- Certificate of mail of the aforementioned document addressed to the respondent, indicating receipt on December 20, 2023.

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SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated, in summary, that the complainant contracted a micro-loan and provided a copy "(...) of the contracts, the General Terms and Conditions of the Loan, the European Standardized Information on Consumer Credit, and the proof of the deposit that was received in the complainant's account for the amount of the principal loaned, which certify that the contract was successfully concluded in compliance with all legal provisions."

"(...) The complainant has all the documentation related to their contracting, which they can access at any time since the conclusion of the contracting process."

The respondent adds that "(...) Since they claim to be unaware of how the debt was generated, we provide as Document No. 3 the chronological sequence of actions taken by the complainant to obtain the loans, which demonstrate that they were aware of everything they were contracting before receiving the principal amount, so it is not true that they are unaware of the existence of the contract with Credirect."

SECOND.- If they have responded to the request for the exercise of rights by the complainant, accreditation of the response provided.

According to what was stated in the previous response, my client diligently attended to the exercise of rights of the complainant, as they have a copy of all the documentation requested at the time of the perfection of the contract, so the complaint does not find its reason for being in the exercise of rights of the complainant, but in the non-payment of the outstanding debt (...)

THIRD: After examining the response received to the transfer and request for information made by this Agency, it is noted that there are certain aspects that needed clarification.

Therefore, a deadline was granted to the respondent to supplement the initially submitted documentation, credibly proving the response provided to the complainant after the transfer, since the complaint was filed for not having received the regulatory response. All of this, in accordance with Article 12.4 of the LOPDGDD.

According to the certificate issued by “dehú notifications” and which is part of the file, the notification sent by this Agency was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on April 29, 2024.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on April 30, 2024, for the purposes provided in Article 64.1

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of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent the opportunity to be heard, so that within ten working days they could present any arguments they deemed appropriate, but no arguments were submitted within the established timeframe.

FIFTH: The respondent has submitted to this Agency, on April 30, 2024, a copy of the email sent to the complainant on April 29, 2024, received by them on the same day, in which they inform, in summary, that the requested deletion is not applicable due to an outstanding debt.

Regarding the requested right of access, “(...) we would like to remind you that under Article 15 of the General Data Protection Regulation (“GDPR”), it is essential to ensure the proper handling of the information we hold about you, the purposes of which are contained in Article 15 of the General Conditions of the Loan Contract you signed on 04/07/2023: (...)” transcribing that last article.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as

appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the complainant's requests were satisfied. Consequently, on April 30, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject.

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rights, which shall be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of article 15 of the GDPR and article 13 of the LOPDGDD, "the data

subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to such personal data."

Regarding the right of access to personal data, according to the provisions of article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which shall be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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In the case at hand, it is evident that the respondent has exercised the right of access through the request, a copy of which is attached to the complaint, where all necessary documentation related to the alleged debt is requested.

V

Right to Restriction of Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller restriction of processing of personal data when one of the following applies:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the establishment, exercise or defense of legal claims;
- d) the data subject has objected to processing pursuant to Article 21(1), pending verification of whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the establishment, exercise or defense of legal claims, or for the protection of the rights of another natural or legal person, or for reasons of significant public interest of the Union or of a Member State.

3. Any data subject who has obtained restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted."

It should be noted that the right to restriction of processing enables the claimant to limit the processing

of data when the accuracy of the personal data is contested, for a period allowing the controller to verify their accuracy; when the processing is unlawful and the data subject opposes the erasure of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the establishment, exercise, or defense of legal claims; or when the data subject has objected to the processing, pending verification of whether the legitimate grounds of the controller override those of the claimant.

Regarding the case at hand, the right to restriction invoked by the claimant would fall under paragraph a) of the aforementioned article, given that, in addition to access to their personal data, the party has contested the accuracy of such data, expressly stating that the data collected in the solvency files do not match their economic reality, explicitly requesting the temporary blocking of the same while supervision was carried out.

In this regard, Article 6.1 of the GDPR expressly states that "all reasonable measures shall be taken to erase or rectify without delay personal data that are inaccurate with respect to the purposes for which they are processed."

VI

Conclusion

Article 4 of the GDPR, Definitions, provides that:

"For the purposes of this Regulation, the following definitions shall apply:

1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;
(...)"

In the analyzed case, from the examination of the documentation provided, it has been established that the claimant exercised the rights of access and restriction.

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Regarding the right of access, "(...) information about the alleged debt that is being claimed from me and information about the communication of the registration of my data in the files, as I have not been notified of anything," the entity has not provided any documentary evidence that would allow considering that it has provided the claimant with the requested data. The respondent replied indicating that the requested data is included in the General Terms and Conditions of the Loan. The right of access is the right of data subjects to know what data is being processed by the controller, the data subject to processing, the purpose of this, the source of the data, and whether it has been or will be communicated to third parties.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request to exercise rights is not attached, it is appropriate to uphold the complaint that initiated this procedure concerning the right of access, regulated in Article 15 of the GDPR."

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As for the right to restriction, the respondent has stated that the data collected in the solvency files do not match their economic reality and expressly requested their precautionary removal, explicitly requesting the temporary blocking of the same while the suspension was carried out. This request was also not addressed by the respondent.

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However, during the instruction of this file, the respondent informed the claimant via email that the deletion of their data from the solvency files is not applicable due to the existence of an outstanding

debt that has not been contested before the competent authorities.

The respondent indicated that, once the loan was due, they contacted the claimant by phone and via SMS several times to request the repayment of the loan. "(...) Specifically, and despite the contrary indication, on September 25, 2023, at 09:14 hours, my client diligently made a claim for the monetary amount owed by the claimant to the entity. In the communication sent, my client not only reminded the claimant of the existence of an unpaid debt but also authorized them to make the payment within 10 days following the communication. They also warned that failure to pay the debt after the claim would result in the registration of their personal data in the national registry of defaulters ASNEF-EQUIFAX. Furthermore, we submit as Document No. 4 the formal payment request with acknowledgment of receipt dated September 25, 2023, while the original claim of this file is signed on January 25, 2024." The right to limit processing allows the claimant to have the processing of their data limited when the accuracy of the personal data is contested, for a period that allows the controller to verify its accuracy; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has opposed the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

Consequently, it is appropriate to uphold, for formal reasons, the claim presented regarding the right to limitation of processing regulated in Article 18 of the GDPR, as it has been duly denied once the legally established period for doing so has elapsed.

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Agency for Data Protection to resolve the conflict underlying between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CREDIRECT PRÉSTAMOS, S.L. with NIF B88569959, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO UPHOLD, for formal reasons, the claim made by A.A.A. against CREDIRECT PRÉSTAMOS, S.L. with NIF B88569959 in relation to Article 18 of the GDPR. However, it is not appropriate to issue a new certification by said entity, as the response was issued late, and no additional actions are required from the controller.

THIRD: TO NOTIFY this resolution to A.A.A. and to CREDIRECT PRÉSTAMOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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